

Legal Counsel Update: August 27, 2026

11:00 a.m.

Attending: Commissioners Ron Smith, Colene Martin and Gary Richardson; Wally Hicks, Legal Counsel

Legal Counsel Update

1. Declaration of Potential Conflicts of Interest

The Commissioners declared no potential conflicts of interest.

Commissioner Smith called for Executive Session at 11:01 a.m. pursuant to ORS 192.660(2)(h) to consult with counsel concerning the legal rights and duties of the County regarding current litigation. Accredited representatives of the news media were advised that the deliberations and statements made during Executive Session were not to be reported or disclosed, except for the general subject previously announced. The Board stated that no decision would be made in Executive Session.

Additional Attendees: Accredited media present were Crissy Ewell, Daily Courier, Jay Meredith, Grants Pass Tribune, Rhiannon Henkels County Clerk and Dave Daniel, County Sheriff

2. Executive Session - Petition for Judicial Review of Ballot Title

Executive Session concluded at 11:13 a.m.

Legal Counsel Update Continued

3. Petition for Judicial Review of Ballot Title - Josephine County Circuit Court Case No. 26CB45288

The Board reconvened in Open Session at 11:13 a.m. and stated that the petition for judicial review of the ballot title had been discussed in Executive Session and that no decisions were made.

4. Additional Subjects/Matters from Commissioners - ORS 192.640(1)

Commissioner Richardson reviewed department completion percentages for the County employee benefits enrollment period. Several departments had reached 100 percent completion, while others remained in progress. Staff noted that the Sheriff's Office follows a different enrollment schedule for most employees. The current enrollment period was approaching its August 31 deadline.

5. Additional Subject Matters/Announcements

Commissioner Martin reminded the public of the Whitehorse Park ribbon cutting scheduled for September 2, 2026, at 11:00 a.m. The Board also commended local firefighters and the Sheriff's Office for their response to fires during the current fire season and encouraged continued caution.

There being no further business, the Legal Counsel Update adjourned at 11:18 a.m.

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